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Case Number: 24STCV32629 Hearing Date: August 12, 2026 Dept: 406

ARTHUR SARKISSIAN, et

al.,

Plaintiffs,

v.

JOSHUA MACIELLO, et

al.,

Defendants.

Case No.: 24STCV32629

Hearing Date: August 12, 2026

[TENTATIVE]

order RE:

defendant joshua maciello's demurrer and
motion to strike

BACKGROUND

On December 10, 2024, Plaintiffs

Arthur Sarkissian and Valerie Hambas Sarkissian filed this action against

Defendants Joshua Maciello; LP Counsel, PC; and Liza Parnassi. Plaintiffs

filed the operative First Amended Complaint on December 13, 2024, asserting (1)

fraud, (2) breach of written contract, (3) breach of oral contract, (4) breach of fiduciary duty, and (5) conversion.

The complaint alleges that Macciello borrowed hundreds of thousands of dollars from Plaintiff under the false pretense that he would repay the loans. Macciello also allegedly induced Plaintiff to become a member of his company to further misappropriate Plaintiff's money. Macciello allegedly conspired with LP Counsel and Parnassi to conceal financial information from Plaintiff.

On July 21, 2026, Macciello filed the instant demurrer and motion to strike. Plaintiffs filed oppositions on July 30, 2026. Macciello filed replies on August 5, 2026.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) 'in ordinary and concise language,' and the test for adequacy is not absolute but 'whether the pleading as a whole apprises the adversary of the factual basis of the claim.'" (Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of that pleading. (Code Civ. Proc., § 435, subd. (b).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike (1) any irrelevant, false, or improper matter inserted in any pleading and (2) all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

MEET AND CONFER

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., §§ 430.41, 435.5.) The Court finds that Defendant has satisfied the meet and confer requirement. (See Kaplan Decl.)

DISCUSSION

I.

Demurrer

a. Statute of Limitations

A claim for fraud is subject to a three-year statute of limitations, accruing upon “the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338(d).) A claim for breach of oral contract is subject to a two-year statute of limitations, accruing upon “the discovery of the loss or damage suffered by the aggrieved party thereunder.” (Id., § 339.)

In this case, Macciello allegedly approached Plaintiffs in June or July 2017 and asked for money, promising to repay it once he obtained income from his business projects. (FAC ¶ 10.) Macciello allegedly entered into a written loan agreement with Valerie Sarkissian in July 2017, with a due date of September 2017. (Id., ¶ 11.) In August 2017, Macciello allegedly loaned \$150,000 from Arthur Sarkissian under an oral agreement, promising to repay it “in less than two months.” (Id., ¶¶ 12, 34.) Macciello allegedly failed to repay the loans within the promised time and admitted that his representations had been false. (Id., ¶ 13.) Macciello allegedly sent Arthur Sarkissian apologetic texts in October and December 2017. (Ibid.) Macciello allegedly continued to acknowledge his debt, as recently as June 2024. (Id., ¶¶ 14-15.)

Macciello argues that the claims are

time-barred because according to the FAC, Plaintiffs would have discovered the alleged fraud and breach in 2017, when Macciello failed to repay the loans and admitted to the fraud.

b. Code of Civil Procedure Section 360

Plaintiffs argue that the claims are timely under Code of Civil Procedure section 360, which provides as follows:

No acknowledgment or promise is sufficient evidence of a new or continuing contract, by which to take the case out of the operation of this title, unless the same is contained in some writing, signed by the party to be charged thereby, provided that any payment on account of principal or interest due on a promissory note made by the party to be charged shall be deemed a sufficient acknowledgment or promise of a continuing contract to stop, from time to time as any such payment is made, the running of the time within which an action may be commenced upon the principal sum or upon any installment of principal or interest due on such note, and to start the running of a new period of time, but no such payment of itself shall revive a cause of action once barred.

(Code Civ. Proc., § 360.)

Plaintiffs argue that Macciello's continued affirmations of his debt exempt this case from the statute of limitations. Plaintiffs cite to *Buescher v. Lastar* (1976) 61 Cal.App.3d 73, 75-76 for the proposition that an "unqualified recognition of the legally expired obligation creates by law an implicit waiver of the statute of limitations and a promise by appellant to pay."

First, Plaintiffs' section 360 theory fails at the outset as to Valerie Sarkissian. The purported writings alleged in the FAC are texts to Arthur Sarkissian, not Valerie Sarkissian. (See FAC ¶ 15.) The FAC alleges that Macciello "confirmed his obligation to Arthur Sarkissian." (Id., ¶ 14.) Thus, Valerie Sarkissian's fraud claim remains time-barred despite section 360.

Second, the texts Macciello allegedly sent do not constitute a "writing, signed by the party to be

charged.” (See Code Civ. Proc., § 360.) This is distinguishable from Buescher, where the written letters affirming a debt “were signed by the respective senders.” (Buescher, supra, 61 Cal.App.3d at p. 75.) Plaintiff cites to First Nat’l Bank v. Pray (1927) 86 Cal.App. 484, 489 for the proposition that “the code section does not prescribe any form in which an acknowledgment or promise sufficient to lift the bar of the statute of limitations shall be made.” But the code does prescribe that the acknowledgment must be in writing and must be signed. Thus, while the code might allow for variations in form, it always requires a signed writing. Accordingly, the alleged texts are not sufficient to revive the claims under section 360.

c. Equitable Estoppel

“A defendant will be estopped to invoke the statute of limitations where there has been ‘some conduct by the defendant, relied on by the plaintiff, which induces the belated filing of the action.’” (Holdgrafer v. Unocal Corp. (2008) 160 Cal.App.4th 907, 925.) “[W]hether an estoppel exists—whether the acts, representations or conduct lulled a party into a sense of security preventing him from instituting proceedings before the running of the statute, and whether the party relied thereon to his prejudice—is a question of fact and not of law.” (Id. at pp. 925-26.)

Here, Macciello allegedly reaffirmed his debt to Arthur Sarkissian multiple times and promised to repay it. (FAC ¶¶ 14-15.) Whether these affirmations were sufficient to induce Arthur Sarkissian into refraining from legal action is a question of fact. For pleading purposes, it may be reasonably inferred that Macciello’s continued promises to repay the debt convinced Arthur Sarkissian to refrain from filing suit. However, as discussed above, there are no allegations that Macciello reaffirmed his debt to Valerie Sarkissian. Thus, the fraud claim fails as to Valerie Sarkissian regardless of equitable estoppel.

In sum, the first and third causes of action are not time-barred as to Arthur Sarkissian, but the first cause of action is time-barred as to Valerie Sarkissian.[1]

d. Specificity

“The elements of fraud that will

give rise to a tort action for deceit are: '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.'" (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 974, quoting Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) Fraud must be pleaded with specificity rather than with general and conclusory allegations. (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.) The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made. (Lazar, supra, 12 Cal.4th at p. 645.)

Here, the fraud claim is pled with specificity: "In June and July, 2017, Macciello made the following statements orally to Plaintiffs, in Los Angeles County." (FAC ¶ 22.) Macciello allegedly represented that he had a net worth of over \$1 million, had the ability to repay the loans, and would repay the loans within a few weeks. (Ibid.) At the time Macciello made these alleged statements, he allegedly did not have a net worth of \$1 million, did not have the ability to repay the loans, and did not have the intent to repay the loans. (Ibid.) Thus, Macciello made misrepresentations of present, existing facts with knowledge of falsity.

Macciello argues that the alleged representations pertain to predictions or future conduct, citing Cansino v. Bank of America (2014) 224 Cal.App.4th 1462. However, that case is distinguishable because it involved predictions about "the future of the real estate market." (Id. at p. 1469.) By contrast, Macciello allegedly misrepresented his present financial position and ability to repay.

Moreover, promissory fraud is an actionable claim despite pertaining to future conduct. "A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud." (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 973-74; see also Stockton Mortgage, Inc. v. Tope (2014) 233 Cal.App.4th 437, 458 ["a false promise to perform in the future can support an intentional misrepresentation claim"].) Here, Macciello allegedly misrepresented his present state of mind, i.e., his intent to repay the loans.

Lastly, Macciello points to purported

inconsistencies in the amounts owed and the dates of the alleged loans. However, these are not material distinctions that defeat the fraud claim. Ambiguities as to the precise amount owed and the precise dates of the loans can be clarified in discovery. The complaint otherwise satisfies the specificity requirement and sufficiently puts Macciello on notice of the basis for the fraud claim.

e. New Reply Arguments

In his reply, Macciello raises two additional arguments: that the fraud claim is duplicative of the contract claim; and that the loans were usurious. “[P]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.” (*Tellez v. Rich Voss Trucking, Inc.* (2015) 240 Cal.App.4th 1052, 1066.)

Nonetheless, the arguments lack merit. The fraud claim is not duplicative of the contract claim because it is not merely based on Macciello’s failure to repay the loans. Instead, the fraud claim is based on Arthur Sarkissian being induced into the loans due to Macciello’s misrepresentations about his financial condition. Moreover, usury does not preclude the claims entirely. It does not absolve Macciello of his alleged fraudulent conduct or release him from his obligation to repay the loans. At most, usury would limit the recoverable amount. (See, e.g., *Korchemny v. Piterman* (2021) 68 Cal.App.5th 1032, 1042.)

II.

Motion to Strike

“In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).) “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.*, subd. (c)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.*,

subd. (c)(2).) Fraud is “intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Id., subd. (c)(3).)

Here,

as discussed above, the FAC contains a valid fraud claim as to Arthur Sarkissian. Fraud is an independent basis for punitive damages. Therefore, the FAC has pled a basis for punitive damages.

CONCLUSION

Defendant Joshua Macciello's demurrer is SUSTAINED without leave to amend as to Valerie Sarkissian's first cause of action and OVERRULED in all other respects. The motion to strike is DENIED.

[1] Valerie Sarkissian is not a plaintiff to the third cause of action.